

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 835

By: Daniels of the Senate

and

Lepak of the House

10 COMMITTEE SUBSTITUTE

11 An Act relating to the Secretary of State; defining
12 terms; requiring submission of certain agency actions
13 to Secretary of State for review; establishing
14 procedures for review; requiring board to abide by
15 certain recommendations; subjecting board members to
16 removal for certain misconduct; specifying actions
17 not to be deemed anticompetitive; authorizing board
18 to make certain request; providing for codification;
19 and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 664.11 of Title 74, unless there
21 is created a duplication in numbering, reads as follows:

22 A. As used in this section:

23 1. "Proposed qualifying actions" means proposed actions by a
24 qualifying board that include, but are not limited to:

- a. actions affecting a class or category of individuals,
 - b. actions contested by the respondent,
 - c. actions based on alleged conduct not admitted by the respondent,
 - d. revocation or suspension of a license,
 - e. actions stemming from a complaint filed by a competitor of the respondent, or
 - f. actions that are purely discretionary by the board;
- and

2. "Qualifying board" means a state licensing board or commission on which a majority of members are market participants in the occupation the board or commission regulates, but shall not include a state licensing board or commission whose actions are actively supervised by a statewide elected official who reviews the substance of the actions, has the power to veto or modify particular decisions to ensure they accord with state policy, and is not an active participant in the occupation the board or commission regulates.

B. 1. Any qualifying board proposing to take non-rulemaking action that has anticompetitive effects shall submit such proposed action to the Secretary of State for review and confirmation that the action is enforcing a clearly articulated and affirmatively expressed state policy.

1 2. The Secretary of State, or his or her designee, shall review
2 the action and return a written determination to the qualifying
3 board within sixty (60) days.

4 3. Upon receipt of the written determination of the Secretary
5 of State, the qualifying board shall abide by the recommendation of
6 the Secretary of State, if any.

7 4. Failure of the qualifying board to following the written
8 determination of the Secretary of State shall constitute misconduct
9 and shall subject the board members to removal for cause by the
10 appointing authority.

11 C. Actions taken by qualifying boards that do not carry
12 anticompetitive implications need not be submitted to the Secretary
13 of State for review. Such actions shall include, but not be limited
14 to:

15 1. Actions to which the respondent consents or agrees;

16 2. Actions resulting from a criminal conviction in a court of
17 competent jurisdiction;

18 3. Actions in which the qualifying board has performed the non-
19 discretionary task of implementing a mandatory statute;

20 4. Actions that impose only a fine or a requirement for
21 additional education; and

22 5. Actions that do not affect the status of a license or
23 otherwise prevent a licensee from continuing to participate in the
24 occupation of the licensee.

1 D. Qualifying boards may request a determination from the
2 Secretary of State as to whether an action of the qualifying board
3 is a proposed qualifying action.

4 SECTION 2. This act shall become effective November 1, 2026.

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6 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 04/15/2026 - DO PASS,
7 As Amended.
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